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Case Number: 20STCV34803 Hearing Date: July 10, 2026 Dept: 6

CASE

NAME: The

Estate of Nancy Vezina, et al. v. Atria Senior Living, Inc., et al.

Plaintiffs

The Estate of Nancy Vezina and Graham Ridinger's Motion for Leave to File

Second Amended Complaint for Damages

TENTATIVE

RULING

The Court GRANTS Plaintiffs' Motion for Leave to File Second

Amended Complaint for Damages. Plaintiffs must file and serve the proposed

Second Amended Complaint within five calendar days of the Court's order.

Plaintiffs are ordered to give

notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a wrongful death/elder abuse case. On September 10, 2020, plaintiffs The Estate of Nancy Vezina, by and through its Successor-In-Interest, Graham Ridinger, and Graham Ridinger, individually and as Successor-In-Interest to The Estate of Nancy Vezina (collectively, Plaintiffs) filed this action against defendants Atria Senior Living, Inc., Jen Johnson, Subashsani Kumar (collectively, Defendants), and Does 1 through 50. On March 22, 2021, Plaintiffs filed the operative First Amended Complaint (FAC) against the same Defendants, alleging causes of action for wrongful death, elder abuse, negligence, and intentional infliction of

emotional distress (IIED). On March 25, 2021, Plaintiffs filed doe amendments naming Atria Covina, WG Covina SH, LP, and Atria Management Co., LLC as doe defendants in place of Does 1, 2, and 3, respectively. Any reference to the term “Defendants” hereinafter includes Atria Covina, WG Covina SH, LP, and Atria Management Co., LLC.

On August 18, 2023, the previously assigned Court entered judgment in favor of Defendants and against Plaintiffs following a summary judgment motion.

On February 10, 2026, the Court of Appeal issued a remittitur reversing the judgment and vacating the order granting summary judgment, and granted summary adjudication only as to the IIED claim. On March 12, 2026, after the case was reassigned, this Court entered the order from the Court of Appeal.

On May 29, 2026, Plaintiffs moved for leave to file a Second Amended Complaint for damages. On June 26, 2026, Defendants opposed the Motion. On July 2, 2026, Plaintiffs replied to Defendants’ Opposition.

LEGAL STANDARD

Code of Civil

Procedure section 473, subdivision (a)(1) provides, in relevant part: “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” (Code Civ. Proc., § 473, subd. (a)(1).) This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.)

Under Rule

3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended

pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under Rule 3.1324, subdivision (b) of the California Rules of Court, a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

DISCUSSION

Summary of Arguments

Plaintiffs

move for leave to file a Second Amended Complaint (SAC) that removes the prior IIED claim and adds a new cause of action for financial elder abuse. Plaintiffs contend the proposed amendments are based entirely on the same operative facts and that the proposed amendments are narrowly tailored, introduce no new substantive facts, and simply add a legal theory supported by already-litigated evidence. Plaintiffs argue that California's strong policy favoring liberal amendment of pleadings and that Defendants cannot show prejudice because all facts supporting the financial elder abuse theory, such as residency, monthly payments, regulatory citations, and alleged substandard care, have been fully known and litigated since the lawsuit began. Plaintiffs contend the amendments are necessary to allow them access to the full statutory remedies under the Elder Abuse and Dependent Adult Civil Protection Act, including uncapped damages available only under financial-abuse provisions.

In

opposition, Defendants argue that Plaintiffs' request to add a financial elder abuse claim is extremely late and unjustified, given that Plaintiffs have known the relevant facts since the case began in 2020. Defendants contend that the parties have already engaged in extensive litigation, including 24 sets of

written discovery, numerous motions, and depositions, and contend that adding a new claim now would unduly prejudice Defendants by triggering additional financial-related discovery. Defendants also contend the amendment is unnecessary because the existing elder abuse claim already allows recovery of all economic damages and enhanced remedies, making a separate financial elder abuse claim redundant. Defendants further argue that Plaintiffs have failed to comply with the mandatory requirements of California Rules of Court, rule 3.1324, subdivision (b), because counsel's declaration does not explain why the amendment is necessary, when the facts were discovered, or why the request was not made earlier. Defendants contend that allowing the amendment would unfairly create a "moving target," disrupt case management, and increase costs, contrary to established case law discouraging late-stage amendments without good cause. Defendants argue that denying the motion will not prejudice Plaintiffs because the remedies they seek are already available under existing causes of action.

Analysis

The

Court finds leave to amend proper. Policy strongly favors leave to amend so that all issues are fully adjudicated in the same lawsuit. (*Kittredge Sports Co. v. Superior Court*, supra, 213 Cal.App.3d at p. 1047.) Plaintiffs provided both a clean and marked copy of the proposed SAC. (Stern Decl., Exs. B-C; Cal. Rules of Court, rule 3.1324, subd. (a).) Plaintiffs' counsel's declaration also indicates the effect of the proposed amendments and why amendment is necessary and proper. (Stern Decl., ¶¶ 2-9; Cal. Rules of Court, rule 3.1324, subds. (b)(1)-(b)(2).) While the Court agrees with Defendants that Plaintiffs' counsel's declaration fails to adequately explain the delay in adding the proposed amendments if they are based on the same facts as before, the Court again reiterates the strong policy favoring leave to amend. (See Stern Decl., ¶¶ 2-11; *Kittredge Sports Co. v. Superior Court*, supra, 213 Cal.App.3d at p. 1047.) The Court further finds insufficient evidence of prejudice to Defendants if leave to amend is permitted. Trial is still approximately eight months away, which should be sufficient time to permit discovery on the financial elder abuse claim. (See *Magpali v. Farmers Grp., Inc.* (1996) 48 Cal.App.4th 471, 488.) The fact that extensive discovery has already been conducted thus far does not create prejudice. Any substantive challenges to the merits of the financial elder abuse claim can be raised once the amendment is allowed as "the better course of action" is to allow amendment "and then let the parties test its legal sufficiency in other appropriate proceedings. [Citation.]" (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760.)

Based on the foregoing, the Court GRANTS the motion.

CONCLUSION

The Court GRANTS Plaintiffs' Motion for Leave to File Second Amended Complaint for Damages. Plaintiffs must file and serve the proposed Second Amended Complaint within five calendar days of the Court's order.

Plaintiffs are ordered to give notice of the Court's ruling within five calendar days of this order.